

ESTATES

ESTATE OF EDNA ASHER

CASE NUMBER: 25PB-0032809

This matter is on calendar for confirmation of filing an order on the Petition for Final Distribution and a Petition for Final Discharge. An order on the Petition for Final Distribution was filed on July 30, 2026. A Petition for Final Discharge has not been submitted. The matter is continued to **Monday, August 24, 2026, at 2:30 p.m. in Department 44** for confirmation of filing a Petition for Final Discharge. If the Petition cannot be filed prior to the next hearing date, the Personal Representative is **ORDERED** to file a Status Report at least five days before the hearing advising what must be accomplished before the Petition can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF DEBORAH AUGUST

CASE NUMBER: 26PB-0033488

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. No objections have been raised. One of the beneficiaries is a minor, therefore a Guardian Ad Litem is required to be appointed. Proof of Publication has not been filed. The matter is continued to **Monday, August 31, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Proof of proper publication is required to be filed. An application and order for appointment of a Guardian Ad Litem is required to be filed for the minor beneficiary. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA BIRKLAND

CASE NUMBER: 24PB-0032328

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A Status Report has been filed; however, service of the Status Report was untimely. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution noticed for a different date, the Court will vacate the September 21, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOAN BUTER

CASE NUMBER: 25PB-0033049

This matter is on calendar for hearing on a Second Amended Report of Executor and Petition for Final Distribution on Waiver of Account. The matter has been properly noticed with proof of service on file. The second amended Petition sufficiently addresses the issues raised on April 20, 2026, and June 15, 2026. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been submitted and will be executed by the Court. The Personal Representative is the only heir of the estate, therefore the Court waives the filing of a receipt. This matter is set for **Monday, August 31, 2026, at 2:30 p.m. in Department**

44 to confirm the filing of a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF PAUL CHAMBERLAIN

CASE NUMBER: 26PB-0033448

This matter is on calendar for hearing on an amended Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition seeks to transfer the decedent's 50% property interest to the Petitioner. The Petition states that even though title was held as joint tenants (without right of survivorship), the home is community property because the parties were married prior to the decedent's death and Petitioner is therefore entitled to 100% interest. It is presumed that property acquired by a married person while domiciled in the State of California is community property. Family Code Section 760. Evidence Code section 662 provides that the owner of the legal title to property is presumed to be the owner of the full beneficial title. This presumption may be rebutted only by clear and convincing proof. Here, no facts have been provided to support application of the community property presumption or to overcome the presumption of title. No assignments have been filed by the remaining heirs to assign their interest in the decedent's separate property to Petitioner.

The matter is continued to **Monday, September 14, 2026, at 2:30 p.m. in Department 44** for further proceedings on the amended Petition to Determine Succession to Primary Residence. A supplemental declaration is required to address application of Family Code Section 760 and Evidence Code 662. **No appearance is necessary on today's calendar.**

ESTATE OF DONAL DIAZ

CASE NUMBER: 25PB-0032942

This matter is on calendar for hearing on an Ex Parte Application and Motion to Vacate Dismissal and to Reinstate/Reissue Letters to Public Administrator. The Public Administrator seeks to vacate the Court's order dated June 5, 2026, insofar as it dropped the Petition and ordered the case closed and reinstatement as the Personal Representative. The Public Administrator was previously appointed as Personal Representative on June 30, 2025. A trial was held in which the Court entered a settlement between the parties and dismissed a competing Petition filed by Lori Nixon. Inadvertently, the entire case was closed. The Court notes the matter has not been properly noticed. However, considering the case was closed in error, the Application is **GRANTED**. A proposed Order has been lodged and will be executed. The Public Administrator is ordered to serve a copy of the order on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF JEREMY DUNKASON

CASE NUMBER: 24PB-0032629

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed indicating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, November 23, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal